

WESTHAMPTON ZONING BOARD OF APPEALS

SUPPLEMENTAL MINUTES FOR PUBLIC HEARING OF JULY 19, 2017

109 NORTHWEST ROAD

These minutes supplement the Zoning Board of Appeals Decision Dated August 9, 2017 on an Appeal dated June 5, 2017, by Abutter Mary Powers, as to Whether the Building Permit Issued to Amber Kellogg and Michel Barbeau for Construction of a Single Family House at 109 Northwest Road in Westhampton Was Issued in Error.

A question was raised as to whether the Building Inspector had submitted any written response to the appeal to the ZBA. The ZBA stated that they had not received any written response from the Building Inspector.

The appellant presented evidence that 109 Northwest Road had been discontinued for more than 24 months based on the following facts. There was no survey recorded at the Registrar of Deeds. The property had no electricity since 2013. The tax assessor had given the property a building value of \$0. The former mobile home had been removed in 2014. In addition, the appellants stated that there was no site plan and no plot plan presented for the property.

Evidence was also presented of several efforts to sell the property, including an initial offer by Ms. Powers, of \$50,000, and then a later offer of \$35,000, which Ms. Powers made after she was told that the property was not a legal building lot. Ms. Powers' offer was rejected. Another separate offer to buy the property, also rejected, was also discussed.

Testimony was presented that the Planning Board had instructed Ms. Kellogg to meet with the ZBA, notwithstanding Mr. Miller, the Building Inspector's, notation of "N/A" on the ZBA space on the building sign-off sheet. Ms. Kellogg did not agree that she had received such advice from the Planning Board.

For the rest of the proceedings related to 109 Northwest Road, please see the ZBA's Decision Dated August 9, 2017.

Respectfully submitted,

Shirley P. Morrigan
Clerk